

24STCV18337 24STCV18337

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV18337 Hearing Date: August 3, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

DERRICK BOYKINS, et al.,

Plaintiff,

vs.

CITY OF LOS ANGELES,

Defendant.

Case No.:

24STCV18337 [r/w 24STCV18337]

Hearing Date:

August 3, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

PLAINTIFFS' MOTION

FOR DISCOVERY OF PEACE OFFICER PERSONNEL AND OTHER RECORDS

Background

On July 23, 2024, Plaintiffs Derrick Boykins and Jonathan Pacheco (jointly, "Plaintiffs") filed this action against Defendant the City of Los Angeles (the "City"), alleging two causes of action. On August 12, 2024, Plaintiffs filed a first amended complaint.

On December 3, 2025, the Court held a hearing on Plaintiffs' Pitchess motion. "At the hearing, the parties agreed that ... Plaintiff will file and serve an amended complaint to include allegations that Captain Mota took additional retaliatory actions against Plaintiffs after the filing of the complaint in this case." (Order 12/3/25, p. 2.) The motion was "withdrawn without prejudice." (Ibid.)

On January 5, 2026, Plaintiffs filed the operative second amended complaint ("SAC") against the City, alleging three causes of action for (1) retaliation in violation of the California Fair Employment and Housing Act (Gov. Code § 12940, et seq.), (2) whistleblower retaliation (Labor Code § 1102.5), and (3) failure to take corrective measures to prevent retaliation in violation of the California Fair Employment and Housing Act (Gov Code § 12940(k)).

On May 27, 2026, the Court sustained the City's demurrer to the third cause of action of Plaintiffs' SAC.

On June 12, 2025, the Court found "that the following cases, 24STCV18337 and 25STCV14105, are related within the meaning of California Rules of Court, rule 3.300(a). 24STCV18337 is the lead case." (Minute Order 6/12/25.)

Plaintiffs again move for an order that the City and the Los Angeles Police Department ("LAPD") produce records. The City opposes. Plaintiffs replied.

Legal Standard

There is a special

two-step procedure for securing disclosure of peace officer personnel records. ((Warrick v. Superior Court (2005) 35 Cal.4th 1011, 1019.) First, the party seeking disclosure

must file a motion that identifies the peace officer, the agency in possession of the records, a description of the records, who is seeking the records, as well as the time and place of the hearing. ((Evid.

Code, § 1043, subd. (b)(1).) The motion must be accompanied by a declaration showing “good cause” for disclosure of the records: setting forth the materiality of the records, and stating upon reasonable belief that the governmental agency has the requested documents. ((Id., § 1043, subd. (b)(3).) This is a so-called “Pitchess” motion, derived from Pitchess v. Superior Court (1974) 11 Cal.3d 531.

The Evidence Code section 1043,

subdivision (b) “good cause” declaration must be sufficiently specific “to preclude the possibility of [the movant] simply casting about for any helpful information.” ((People v. Mooc (2001) 26 Cal.4th 1216, 1226.) However, a declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a Pitchess motion. ((Haggerty v. Superior Court (2004) 117 Cal.App.4th 1079, 1086.) The moving party need show only a “plausible factual

foundation” for discovery—i.e., a

scenario of officer misconduct that might occur or could have occurred. (Warrick v. Superior Court, supra, at p.

1025.) All that is required is the

presentation of a scenario that might have or could have occurred, i.e.,

a “relatively low threshold.” ((Uybungco v.

Superior Court (2008) 163

Cal.App.4th 1043, 1048); see also Blumberg v. Superior Court (2011) 197 Cal.App.4th

1245, 1248 [the good cause requirement of section 1043(b) “embodies a

‘relatively low threshold’ for discovery’ [citation], under which a defendant need demonstrate only ‘a logical link between the defense proposed and the pending charge’ and describe with some specificity ‘how the discovery being sought would support such a defense’”]; Becerrada

v. Superior Court (2005) 131

Cal.App.4th 409, 413 [“A

showing of good cause is measured by ‘relatively relaxed standards’ that serve to ‘insure the production’ for trial court review of ‘all potentially relevant documents.’”].)

Second, if the court finds good cause, then

an in camera hearing must be held. ((Slayton

v. Superior Court (2006) 146

Cal.App.4th 55, 61.) After personally

examining the records in camera, the trial court shall order disclosure of

peace officer personnel records that are “relevant to the subject matter

involved in the pending litigation.” ((Evid. Code, §

1045, subd. (a)); (People v. Mooc, supra, 26 Cal.4th at p. 1226.) If disclosure is ordered, the court must also

order that the disclosed information may not be used “for any purpose other

than a court proceeding pursuant to applicable law.” ((Evid.

Code, § 1045, subd. (e).)

In terms of procedure, notice of the motion must be served in

compliance with Code of Civil Procedure section 1005,

subdivision (b), on the parties and on the governmental agency that has the

records. ((Evid. Code, § 1043, subd. (a).) The

agency is required to notify the individual officer whose records are sought. (Evid. Code, § 1043, subd. (c); see also Evid.

Code, § 1043, subd. (d) [“No hearing upon a

motion for discovery or disclosure shall be held without full compliance with

the notice provisions of this section except upon a showing by the moving party

of good cause for noncompliance, or upon a waiver of the hearing by the governmental

agency identified as having the records.”].)

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Discussion

A.

Allegations of the SAC

Plaintiffs’ SAC

alleges that “Plaintiff

Derrick Boykins and Plaintiff Jonathan Pacheco are both employed by the City of

Los Angeles as sworn peace officers in the Los Angeles Police Department (the ‘Department’

or ‘LAPD’).” (SAC, ¶ 11.) “From in or around November of 2021 until mid-2023,

Plaintiff Pacheco was loaned continuously from Metro Division to the U.S.

Marshals Task Force out of Gang and Narcotics Division (‘GND’),” and “[f]rom in

or around June 2022 until mid-2023, Plaintiff Boykins was also loaned almost

continuously from Metro Division to the U.S. Marshals Task Force.” (SAC, ¶¶ 14-15.)

Plaintiffs allege that the Department began singling out Black officers to work as Mayor Karen Bass’ bodyguard detail, since the mayor is Black, and “Lt. Morgan asked Plaintiff Boykins if he wanted to be assigned to the Mayor’s Detail.” (SAC, ¶¶ 18-19, 24.) “Plaintiff Boykins said he did not, and he also told Lt. Morgan that he did not appreciate that because he is a certain ethnicity (Black), he was getting a phone call asking him to work the Detail.” (SAC, ¶ 25.) Plaintiff Pacheco, in the vehicle with Plaintiff Boykins at the time, heard the phone call. (SAC, ¶ 27.) “[O]n or about February 4, 2023, Plaintiff Boykins filed a personnel complaint complaining that the Department’s singling out of Black officers for recruitment to the Mayor’s Detail constituted race discrimination,” because many Black officers believed that if they rejected the offer, “they would suffer retaliation in the future.” (SAC, ¶¶ 30-31.) “On or about February 9, 2023, Plaintiff Boykins was interviewed by Internal Affairs regarding his personnel complaint.” (SAC, ¶ 32.)

Plaintiffs then allege that “[a]fter Plaintiffs engaged in the above protected activities, the Department retaliated against them.” (SAC, ¶ 38.) “First, on or about July 2, 2023, Plaintiff Pacheco’s long-term loan to the U.S. Marshals Task Force was ended and he was transferred back to Metro Division B Platoon.” (SAC, ¶ 39.) “Then, on or about August 2, 2023, Plaintiff Boykins’s long-term loan to the U.S. Marshals Task Force was ended and he was transferred back to Metro Division B Platoon.” (SAC, ¶ 40.) “Since Plaintiffs’ transfer back to Metro Division, the Department has subjected each of them to additional actions that have materially impacted the terms and conditions of their employment, and that are designed to harm their promotability, isolate them, and damage their reputation. These actions include, but are not limited to, assigning Plaintiff Pacheco to work the desk during DP 10 in 2023, and assigning Plaintiff Boykins to a position in DP 10 in 2023 to isolate him from the rest of B Platoon.” (SAC, ¶ 45.) “In addition, on or about May 5, 2024, Captain Mota caused both Plaintiffs to be ‘benched’ (or removed from the field) and subjected them to a retaliatory audit.” (SAC, ¶ 47.)

Then, “[i]n August 2024, the Department commenced an internal investigation to determine whether Captain Mota had retaliated against Plaintiffs. In or about April 2025, the Department unfounded Plaintiff’s allegations that Captain Mota had retaliated against them.” (SAC, ¶ 50.) “In May 2025, the Department placed Captain Mota on the promotional list and in June or July 2025, the Department promoted Captain Mota to Commander.” (SAC, ¶ 51.)

“As a result of the Department’s actions, Plaintiffs, and each of them, have lost and will continue to lose overtime, as well as other privileges and benefits.” (SAC, ¶ 52.)

B.

Documents Sought

Plaintiffs

seek production of “the following records pursuant to Evidence Code §§ 1043 and 1045:

1. The complaint face sheet and the complete witness interviews in audio or transcript form, or both, for LAPD Internal Affairs Complaint Form (‘CF’) No. 23-000352; and
2. The complaint face sheet and the complete witness interviews in audio or transcript form, or both, for LAPD Internal Affairs investigation conducted in response to the instant lawsuit, Case No. 24STCV18337.”

(Notice of Mot., 2:8-13.)

C.

Good Cause

Plaintiffs explain that

“[i]n this Motion, Plaintiffs seek discovery of the LAPD’s investigation into Plaintiff Boykins’ race discrimination complaint (CF No. 23-000352), specifically the complaint face sheet and the complete witness interviews in audio or transcript form, or both. Plaintiffs also seek discovery of the complaint face sheet and the complete witness interviews in audio or transcript form that LAPD’s Internal Affairs conducted in response to the instant lawsuit, Case No. 24STCV18337.” (Mot., 5:8-12.) Plaintiffs assert that “there is good cause for the discovery sought because it is relevant to prove the elements of Plaintiffs’ retaliation claims.” (Mot., 12:23-25.)

In support of the motion, Plaintiffs’ counsel provides a declaration, stating inter alia, that “Plaintiffs Derrick Boykins and Jonathan Pacheco are both employed by the City of Los

Angeles as sworn peace officers in the Department.” (O’Beirne Decl., ¶ 4.) “A loan in the LAPD is a provisional assignment that can be long-term or short-term,” and “[b]oth Plaintiffs were loaned almost continuously from their assignment at Metropolitan (‘Metro’) Division to the U.S. Marshals Task Force.” (O’Beirne Decl., ¶¶ 5-6.) “Plaintiffs’ loans to the U.S. Marshals Task Force constituted a coveted assignment because the Task Force uses a high level of investigative skill to locate fugitives and dangerous felony suspects; conducts complex surveillance operations; and apprehends a large number of fugitives and Part 1 crime suspects.” (O’Beirne Decl., ¶ 7.) “The experience Plaintiffs gained through working in the Task Force significantly contributed to their ability to advance and/or obtain other coveted assignments in the Department.” (O’Beirne Decl., ¶ 8.)

Plaintiffs’ counsel explains that “[i]n December of 2022, Karen Bass was sworn in as Mayor of the City of Los Angeles,” and “Chief of Police Michel Moore directed supervisors in Metro to attempt to recruit Black officers specifically for the Mayor’s Detail, which is the bodyguard detail for the Mayor, and falls under Metropolitan Division. Mayor Karen Bass is Black.” (O’Beirne Decl., ¶¶ 9-10.) “In or around January of 2023, Plaintiff Boykins heard other officers talking about how Black officers in Metro were being solicited to work the Mayor’s Detail. Plaintiff Boykins is Black.” (O’Beirne Decl., ¶ 12.) “Shortly thereafter, on or about February 2, 2023, Plaintiff Boykins was driving while on duty when he received a phone call from Lt. Gregory Morgan. Plaintiff Boykins accepted the call using the speakerphone,” and “Lt. Morgan asked Plaintiff Boykins if he wanted to be assigned to the Mayor’s Detail. Plaintiff Boykins said he did not, and he also told Lt. Morgan that he did not appreciate that because he is a certain ethnicity (Black), he was getting a phone call asking him to work the Detail.” (O’Beirne Decl., ¶¶ 13-14.) Boykins said “words to the effect of, ‘If I was a white officer, and this was a white mayor, the City would go crazy. Why is this any different?’ Lt. Morgan responded by stating words to the effect of, ‘We all have to follow orders.’” (O’Beirne Decl., ¶ 15.) “Plaintiff Pacheco was in the vehicle and heard Lt. Morgan’s conversation with Plaintiff Boykins.” (O’Beirne Decl., ¶ 16.)

Thereafter, “Boykins spoke with multiple other Black officers in Metro who told him that they had also been asked to go to the Mayor’s Detail; they did not want to work the Detail; and yet they were

concerned the Department would punish them if they turned down the offer,” so “Boykins filed a personnel complaint complaining that the Department’s singling out of Black officers for recruitment to the Mayor’s Detail constituted race discrimination.” (O’Beirne Decl., ¶¶ 17-18.) “Plaintiffs were both interviewed by the LAPD’s Internal Affairs in the investigation generated by Boykins’s complaint,” and “[d]uring Plaintiff Pacheco’s IA interview, he told the truth about what he heard during Lt. Gregory Morgan’s February 2, 2023 phone call with Plaintiff Boykins; however, “[a]fter Plaintiffs engaged in the above protected activities, the Department retaliated against them.” (O’Beirne Decl., ¶¶ 19-21.)

Plaintiff’s counsel attests that on “July 2, 2023, Captain Mario Mota ended Plaintiff Pacheco’s long-term loan to the U.S. Marshals Task Force and transferred Pacheco back to Metro Division B Platoon. Then, on or about August 2, 2023, Captain Mota ended Plaintiff Boykins’s long-term loan to the U.S. Marshals Task Force and transferred him back to Metro Division B Platoon as well.” (O’Beirne Decl., ¶ 22.) “Thereafter, because Plaintiffs had been removed from the Marshals Task Force, but because the Task Force needed personnel to replace them, Metro Division was forced to attempt to recruit officers from B Platoon to volunteer to go on loan to the Task Force.” (O’Beirne Decl., ¶ 23.) “Plaintiffs were the only two officers who volunteered to go on loan to the U.S. Marshals Task Force, yet, they were ignored and denied the opportunity to return to the assignment that they had been removed from out of retaliation.” (O’Beirne Decl., ¶ 24.) “Since Plaintiffs’ transfer back to Metro Division, the Department also subjected each of them to additional adverse actions, including assigning Plaintiff Pacheco to work the desk during DP 10 in 2023, and assigning Plaintiff Boykins to a position in DP 10 in 2023 to isolate him from the rest of B Platoon.” (O’Beirne Decl., ¶ 25.) Then, on “May 5, 2024, Captain Mota caused both Plaintiffs to be ‘benched’ (or removed from the field), subjected them to a retaliatory audit, and sought to transfer them out of Metro Division.” (O’Beirne Decl., ¶ 26.)

Plaintiffs first assert that they demonstrate good cause because “Plaintiff’s counsel’s declaration has articulated a plausible factual scenario that Plaintiffs were subjected to retaliation by the Department for complaining of race discrimination.” (Mot., 12:26-27.) The Court finds that Plaintiffs’ counsel’s declaration demonstrates a plausible factual scenario that retaliation may have occurred.

Plaintiffs next contend that the documents sought are discoverable because

the documents sought are material to their case. Plaintiffs' counsel explains that "Request No. 1 seeks copies of the complaint face sheet and the full witness interviews related to Internal Affairs Investigation File for CF No. 23-000352, which is the investigation Plaintiff Boykins initiated when he filed a personnel complaint alleging race discrimination." (O'Beirne Decl., ¶ 27.) "A 'complaint face sheet' in the LAPD is a three-page form that is the first document created whenever a personnel complaint is initiated against an LAPD employee." (O'Beirne Decl., ¶ 28.) "Request No. 2 seeks the complaint face sheet and the full witness interviews related to the investigation LAPD conducted in response to Plaintiffs' allegations contained in this lawsuit. This second investigation was done in response to Plaintiffs' lawsuit to determine whether Captain Mota retaliated against Boykins after he filed the personnel complaint alleging race discrimination, and whether Mota retaliated against Pacheco after he testified in support of Boykins' personnel complaint." (O'Beirne Decl., ¶ 29.) "The requested investigations concern the very incidents that are the subject of this civil claim." (O'Beirne Decl., ¶ 30.)

Moreover, Plaintiffs' counsel attests that "Plaintiffs will have the burden of proving the elements of their retaliation claims at trial. Specifically, Plaintiffs will first have the burden of proving at trial that they engaged in a protected activity under Labor Code § 1102.5 and the FEHA by complaining about what they reasonably believed to be race discrimination" and "[t]he complaint face sheet and witness interviews from the first investigation that Plaintiffs request through this motion plausibly contain admissible evidence that will help Plaintiffs meet this burden." (O'Beirne Decl., ¶¶ 31-32.) "Plaintiffs will also have the burden of proving at trial that their complaints and/or testimony about race discrimination motivated the adverse employment actions against them." (O'Beirne Decl., ¶ 33.) "In particular, Plaintiffs allege that after engaging in the protected activity above, Mota took retaliatory actions against them, which led to this lawsuit." (O'Beirne Decl., ¶ 34.) "The LAPD then conducted an internal investigation to determine whether Mota took any retaliatory actions against Plaintiffs. In other words, this internal investigation examined the incidents that are the basis for this lawsuit." (O'Beirne Decl., ¶ 35.) "The relevancy of the complaint face sheet and witness interviews from this second investigation is self-evident," and "the witness statements in the investigation file are important for cross-examination and impeachment purposes." (O'Beirne Decl., ¶¶ 36-37.) Plaintiffs' counsel attests that "[u]pon information and belief, LAPD interviewed Captain Mario Mota, Lieutenant Gregory Morgan (who had called Plaintiff Boykins to recruit him to the Mayor's Detail), and other employees as

part of these investigations[,] [t]hus, Plaintiffs are also entitled to this investigation file to impeach the testimony and/or refresh the recollections of witnesses.” (O’Beirne Decl., ¶¶ 38-39.)

Plaintiffs discuss *Riske v. Superior Court*

(2018) 6 Cal.App.5th 647, stating that “[t]he *Riske* decision provides a model for Pitchess discovery in civil employment cases.” (Mot., 12:13.)

In *Riske*, the plaintiff “sued the City of Los Angeles (City) alleging the Los Angeles Police Department (Department) had retaliated against him for protected whistleblower activity by failing to assign or promote him to several positions, selecting instead less qualified candidates. *Riske* filed a discovery motion pursuant to Evidence Code sections 1043 and 1045.” (Id. 22 Cal.App.5th at p. 651.) The City asserted that the plaintiff “failed to show good cause because he provided no specific evidence in his supporting affidavit” and argued the plaintiff was engaged in a “fishing expedition.” (Id. at p. 663.) Pertinently, the Court of Appeal reasoned that “[g]ood cause in the initial phase of a discovery request for officer personnel records requires a plausible factual showing of materiality. *Riske* made that showing by articulating his whistleblower activity, a history of being maligned by other officers for that activity and his substantial qualifications for each of the 14 positions for which he applied... Further particularity is not required.” (Ibid.) The Court “requir[ed] the City to produce the reports sought by *Riske* for an in camera inspection pursuant to Evidence Code section 1045 and to thereafter order production of all discoverable information.” (Id. at p. 652.) Plaintiffs assert that *Riske* demonstrates that “as long as Plaintiffs here set forth a plausible factual foundation for retaliation relating to the requested documents, this Court should grant Plaintiff’s Motion and proceed to an in camera review.” (Mot., 12:19-21.)

Plaintiffs also cite *Haggerty v. Superior*

Court (2004) 117 Cal.App.4th 1079 in support of their request. In *Haggerty*, the court found that the trial “court did not abuse its discretion in refusing to limit the discovery to the names, addresses and telephone numbers of the witnesses identified in the Internal Affairs report.” (Id. at p. 1091.) The court stated that “the requested discovery was important, not only for determining the events that occurred during the incident, but also for [plaintiff’s] counsel to prepare effective cross-examination of defense witnesses, including to impeach witnesses whose testimony at trial differs from statements made to the investigating officers and/or to refresh the

recollections of these witnesses.” (Id. at p. 1089.) The Court of Appeal expressed that there is “a reasonable basis to conclude the internal investigation file of the incident at issue in the lawsuit could contain information that was material to the lawsuit. (See *Robinson v. Superior Court* (1978) 76 Cal.App.3d 968, 977, 143 Cal.Rptr. 328 [noting that the relevancy of an investigation of the incident that is the basis for the lawsuit is ‘self-evident’].).” (Id. at p. 1087.)

Plaintiffs contend that “[h]ere, as in *Haggerty*, the requested investigations concern the very incidents that are the subject of this civil claim. (O’Beirne Decl. ¶ 30.) As in *Haggerty*, Plaintiffs will have the burden of proving the elements of their retaliation claims at trial. Specifically, Plaintiffs will first have the burden of proving at trial that they engaged in a protected activity under Labor Code § 1102.5 and the FEHA by complaining about what they reasonably believed to be race discrimination. (O’Beirne Decl. ¶ 31.) The complaint face sheet and witness interviews from the first investigation that Plaintiffs request through this motion plausibly contain admissible evidence that will help Plaintiffs meet this burden.” (Mot., 14:9-15 [emphasis omitted].) Plaintiffs further contend that they “will also have the burden of proving at trial that their complaints and/or testimony about race discrimination motivated the adverse employment actions against them. (O’Beirne Decl. ¶ 33.) In particular, Plaintiffs allege that after engaging in the protected activity above, Mota took retaliatory actions against them, which led to this lawsuit. (O’Beirne Decl. ¶ 34.) The LAPD then conducted an internal investigation to determine whether Mota took any retaliatory actions against Plaintiffs. (O’Beirne Decl. ¶ 35.) In other words, this internal investigation examined the incidents that are the basis for this lawsuit. (Id.) According to *Haggerty*, the relevancy of the complaint face sheet and witness interviews from this second investigation is self-evident.” (Mot., 14:16-22 [emphasis omitted].)

In opposition, the City contends that “Plaintiffs do not articulate good cause for the production of the Internal Affairs (‘IA’) investigation concerning Plaintiffs’ lawsuit—an investigation concluded a year after the events at issue in this case. As made clear in Plaintiffs’ Motion and FAC and SAC, the events of this lawsuit occurred between July 2023 and May 2024. The IA investigation, by contrast, would have been conducted sometime after August 2024, upon receipt of Plaintiffs’ lawsuit. Plaintiffs’ Motion alleges that Captain Mario Mota was the ‘bad actor’ who engaged in the alleged unlawful conduct toward them, and neither their pleading nor their Motion indicate that

Mota played any role in any IA investigation. Moreover, of paramount importance, Plaintiffs, after being given ample opportunity, cannot show that they suffered any adverse employment action as a result of the investigation into his lawsuit." (Opp., 3:7-15.) The City contends, "[a]s a result of the sustained demurrer to the third cause of action in the SAC and Plaintiffs failure to amend, they do not have a cause of action for failure to prevent retaliation under Govt. Code section 12940 (k) such that the adequacy or inadequacy of the investigation IA conducted after it received his lawsuit is simply not at issue here." (Opp., 4:1-4.) The City contends that "[a]s discussed further below, Plaintiffs do not allege that they suffered any adverse employment action as a result of the IA investigation into their lawsuit. The IA Investigation—its scope, analysis, conclusions, and methodology—is not relevant to Plaintiffs' remaining causes of action here, and Plaintiffs do not offer any theory under which these documents would be admissible." (Opp., 4:7-10.)

The City also "opposes wholesale production of third-party sworn officers' personnel information and work history, pursuant to their privacy rights." (Opp., 4:28-5:1.) The City contends that "the information disclosed during the [Complaint File] investigations at issue were likely provided under compulsion, with the potential penalty of administrative discipline that could result in discharge, or removal from employment with LAPD. Where third party peace and/or custodial officers provide statements under such potential disciplinary consequences, it is of the upmost importance that their privacy rights are protected. Therefore, to the extent that the Court finds that Plaintiffs have not demonstrated any "plausible factual foundation" for how third-party personnel records (particularly as it relates to their work history and disciplinary history that may be contained within the CFs) are material to the subject matter of the pending litigation, Defendant requests an order of non-disclosure." (Opp., 5:10-17.) Further, the City "opposes wholesale production of the investigations in question absent redaction of third-party birthdates, personal telephone numbers, social security numbers, and the like, pursuant to Art. I § 1 of the California Constitution, which entails the right to privacy. Defendant requests that if the Court is inclined to grant the Pitchess Motion, that the order of the Court explicitly permit the City to redact the foregoing private information." (Opp., 5:18-22.)

Next, the City contends that Plaintiffs are not entitled to information contained in the requested complaint files or to portions of witness interviews

relating to the identities of other accused officers. The City cites Penal Code section 832.7, subdivisions (b)(1)(E)(5)-(7), which governs the disclosure of law enforcement personnel records. The City asserts that “information relating to the identity, personal data and information, allegations of misconduct, findings, and adjudication of allegations against other officers accused of misconduct in the requested complaint files should be redacted.” (Opp., 6:18-20.) The City also contends that “information contained in witness interviews conducted in the requested complaint files pertaining to the identity, personal data and information, allegations of misconduct, findings, and adjudication of allegations against other officers accused of misconduct in these investigations should also be redacted. Witness interviews for such investigations are kept in audio format only. In order to redact information from such witness interviews, the audio interviews must first be transcribed.” (Opp., 6:23-28.)

In response, Plaintiffs contend that the information they seek is material. Plaintiffs contend the City “diverts the Court’s attention away from what Plaintiffs seek, and focuses on the ‘scope, analysis, conclusions, and methodology’ of the second IA investigation. (Opp. 4: 8-9.) This may have been germane to what Plaintiffs sought in the original Pitchess Motion but has no bearing on what Plaintiffs request in this Motion. Plaintiffs need not make a good cause showing for the ‘scope, analysis, conclusions, and methodology’ of the second internal investigation because they are not seeking such documents. Plaintiffs have shown good cause for seeking the statements made by Mota and others during their interviews; Defendant has not made any counter argument as to why these interviews should not be produced.” (Reply, 3:6-12.)

Plaintiffs further assert that the City’s “assertion that the IA investigation has ‘nothing to do with what Plaintiffs allege in their lawsuit’ is simply false. (Opp. 4:11-12.) The first internal investigation examined whether race discrimination occurred—the cause of action alleged in the civil Complaint. (O’Beirne Decl. ¶10.) Defendant seems to concede this internal investigation is relevant to what was alleged in the lawsuit: other than a conclusory statement that it is not relevant, the Opposition makes no showing in support of its argument.” (Reply, 3:25-4:2.)

Moreover, Plaintiffs contend that “Defendant argues that ‘the events of this lawsuit occurred between July 2023 and May 2024’ and the second IA investigation took place after August 2024. (Opp. 3:9-11.) Again, this may have been relevant to the first Pitchess Motion but has no relevance to this current

Motion. When the IA investigation took place is immaterial. What the IA investigation examined is relevant. Here, what the IA investigations examined—whether retaliation occurred—is the substance of Plaintiffs' second cause of action. The relevancy is, again, self-evident. Plaintiffs are not trying to show that they suffered any adverse employment actions as a result of the investigation into what they alleged in their lawsuit. (Opp. 3: 14-15.) Rather, they are trying to show that they suffered adverse employment actions that led to the investigation into what their lawsuit alleged." (Reply, 4:12-20.)

Plaintiffs contend that "Defendant's assertion that privacy rights must be protected because police officers were required to testify honestly is specious. The public should demand officers testify truthfully, and the Department is not entitled to some special privilege when they do." (Reply, 6:9-11.) Plaintiffs lastly assert that "Defendant's concern regarding 'third-party birthdates, personal telephone numbers, social security numbers, and the like' is yet another red herring. Plaintiffs do not seek, nor does this Motion request, such information. If, for some inexplicable reason, an interview subject provided their birthdate, phone number, or social security number, Plaintiffs are not opposed to a redaction of this information." (Reply, 6:11-15.)

The Court finds that Plaintiffs demonstrate good cause for the documents requested in this motion. Plaintiffs demonstrate that the documents sought are material to their case because the two investigations arose from the allegations within the complaint or in response to the lawsuit. Plaintiffs also demonstrate that they significantly limited the information requested in this motion from their previous Pitchess motion. Plaintiffs also do not appear to seek confidential information pertaining to the third-parties, such as their social security numbers. Regardless, Plaintiffs' reply explicitly represents that they are not opposed to redactions due to privacy concerns. Further, the Court notes that a finding of good cause is just the first step; so, to the extent that information should be redacted or deemed confidential, the Court will make these determinations after the in camera hearing.

As set forth above, if the court finds good cause, then an in camera hearing must be held. ((Slayton v. Superior Court, supra, 146 Cal.App.4th at p. 61.) After personally examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are

“relevant to the subject matter involved in the pending litigation.” (Evid. Code, § 1045, subd. (a); (People v. Mooc, supra, 26 Cal.4th at p. 1226.) If disclosure is ordered, the court must also order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” (Evid. Code, § 1045, subd. (e); see Alford v. Superior Court (2003) 29 Cal.4th 1033, 1039-1040 [overruled on other grounds].)

Conclusion

Based on the foregoing,
the hearing on this matter is continued to _____, 2026 at 2 p.m. in Dept. 508 to allow for an in camera inspection.

At the continued
hearing, the custodian of records for the County shall bring the records described in Plaintiff's Notice of Motion, except as expressly limited by Plaintiff in her reply papers.

Plaintiffs are ordered to give notice of
this Order.

DATED: August
3, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court